IN THE COURT OF APPEALS OF THE STATE OF MISSISSIPPI

No. 2016-CA-00168-COA

KENNY WALTON
APPELLANT
VERSUS
STATE OF MISSISSIPPI
APPELLEE

MOTION FOR REHEARING

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COME NOW, Appellant, KENNY WALTON, by and through his attorneys of record, TIM C. HOLLEMAN, BOYCE HOLLEMAN & ASSOCIATES, and files this, his Motion for Rehearing, pursuant to Miss. R. Appellate P. 40, and in support of the same would show unto this Honorable Court the following, to-wit:

I.

A "miscarriage of justice" has/is, in fact, occurring in this matter and this Honorable Court has respectfully misapprehended both the law and the facts, therefore the Court should grant rehearing in this matter.

As noted by the dissent, "[t]he benchmark for judging any claim of ineffectiveness [of counsel] must be whether counsel's conduct so undermined the proper functioning of the adversarial process that the trial [or plea] cannot be relied on as having produced a just result." *Jordan v. State*, 918 So. 2d 636, 647 (¶19) (Miss. 2005) (quoting *Strickland v. Washington*, 466 U.S. 668, 686 (1984)). "A defendant must demonstrate that his attorney's actions were deficient and that the deficiency prejudiced the defense of the case." *Id.* Walton was entitled to an attorney who "at a minimum" interviewed "potential witnesses and to make an independent investigation of the facts and circumstances of the case." *Quitman Cty. v. State*, 910 So. 2d 1032, 1038 (¶14) (Miss. 2005) (quoting *State v. Tokman*, 564 So. 2d 1339, 1342 (Miss. 1990)).

Here it is admitted that the State was aware BEFORE Walton's plea that Matthews and McKnight would not only exculpate Kenny Walton, but that both Matthews and McKnight identified the two other perpetrators as Nookie Alexander and Desmond Johnson. Williams as Walton's attorney was not aware of such. He made no attempt to interview these "potential witnesses" McKnight, Nookie Alexander or Desmond Johnson or make independent investigation of their factual testimony. What is even more telling about the prejudice such had

on Williams' defense of Walton, is what Williams himself did AFTER he "first"[1] learned of Matthews and McKnight were not only not going to testify for the State but would testify that Walton was not involved in the alleged crime. Williams filed a Motion to Set Aside Defendant's Guilty Plea (R. E. 9-10); after the above Motion was denied without hearing (See Vol 1/1: R. 30-Order Denying Motion to Withdraw Guilty Plea), Williams then filed a Renewed Motion to Withdraw Guilty Plea (See Vol 1/1: R 34-44; R.E. 11-24) and then filed a Motion for Reconsideration of Sentence (See Vol 1/1: R 96-98). Having failed to set aside Walton's guilty plea, etc., Williams THEN erroneously undertook direct appeal to this Honorable Court. Either Williams truly believed under his oath as an attorney, Walton's plea should be set aside because such was a "miscarriage of justice" or he violated his oath to the Trial Court by filing multiple motions challenging the same and this Honorable Court by filing a direct appeal of denial thereof.

The majority makes much of Williams' testimony that Williams learned from Matthews' attorney and/or Matthews, that Matthews was not going to testify against Walton before his plea, but the majority completely ignores the other three (3) witnesses whom Williams either never attempted to interview and/or did not know about because he admittedly never received the State's discovery: McKnight, Alexander and Johnson. So, Williams never even attempted to interview 3 out of 4 witnesses who were involved in the crimes perpetrated. How could such possibly be considered anything less than "deficient"?

Williams also clearly did not learn from Matthews' attorney or Matthews that Matthews

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[1] During the trial (Magee), the other codefendants as well exculpated my client from any participation in the incident. And on those bases (sic), since it was new evidence that had not ever been disclosed to me either through my client or anyone else, I thought it necessary to at least file the motion to withdraw his guilty plea on those bases (sic) (Vol 1/1: R. 56 lns 17-25 to R. 57 lns 1-10).

was going to actually exculpate[2] Walton and identify Alexander and Johnson as the other perpetrators. It simply cannot be ignored that Williams, for whatever reason, never even attempted to interview McKnight or even talk to his attorney or did not know about or attempt to locate the other perpetrators, Alexander[3] and Johnson.[4] The majority also ignores, contrary to Williams' testimony, that Williams repeatedly represented, under his oath as an attorney, to the Trial Court that he was NOT aware that Walton's co-Defendants would testify that Walton was not involved in the crimes for which he was indicted. (Vol 1/1: R. 56 lns 17-25 to R. 57 lns 1-10; Vol 1/1: R. 56 lns 17-25 to R. 57 lns 1-10; R. E. 230-231; Vol 1/1: R. 103, lns 9-17; R. E. 231; Vol 1/1: R. 108 lns 23-29 to R. 109, lns 2-7; R. E. 231). "Justice" cannot simply reconcile Williams testimony with his actions and own words before being accused of "ineffective" assistance of counsel.

The Majority also makes much of Williams testimony that:

> [Walton] made his own decision, based on the discovery, to enter a plea. . . . But the basis as to why he pled was on the attorney/client communications and in light of what was in the discovery, particularly the phone that he had and his statements; and his statements were very incriminating.

First, "Walton made his own decision, based on the discovery…. in light of what was in the discovery…". The majority ignores that admittedly the "discovery" did not include Matthew's (including Williams purported interview thereof) statement that he, McKnight, Alexander and Johnson committed the crime not Walton or Magee[5]; nor McKnight's expected testimony or not and certainly the identities of Alexander and Johnson. How could Walton make

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[2] There was no information shared with counsel that those witnesses that they pled and interviewed would exculpate this particular defendant at trial. (Vol 1/1: R. 108 lns 23-29 to R. 109, lns 2-7).

[3] https://www.ms.gov/mdoc/inmate/Search/GetDetails/149044; Armed Robbery.

[4] https://www.ms.gov/mdoc/inmate/Search/GetDetails/10525; Manslaughter.

[5] The court should be reminded that Magee was acquitted based, in part, on the same exact testimony of Matthews and McKnight, therefore the outcome of Walton's case certainly could have been different also.

any "decision" "based on the discovery" or "in light of what was in the discovery" he was never provided? This testimony by Williams supported granting of post-conviction relief not the denial thereof, respectfully contrary to the majority view thereof.

Second, without trying to be repetitive, Williams actions and statements after he "first" learned of or discovered Matthews' and McKnight's including identifying the others involved in the crime supported the granting of post-conviction relief. Once Williams learned the "truth" he reacted immediately and repeatedly to set aside Walton's plea. It makes no sense whatsoever to find that if Williams, knew of or had gotten the same information before Walton's plea he would not have reacted in the same exact manner except no plea would have been entered at all.

Finally, in finding Walton made his decision to plea after being informed by Williams of Matthew's not testifying against him, the majority respectfully ignores what Williams himself stated in pleadings filed before the Trial Court about Walton mental capacities: Para. 11: That the Defendant has primitive learning ability and mental anxieties, often appears in a daze state all of which the defense believes may have impacted his ability to truly rationalize the totality of the criminal matters against the Defendant. Para. 14: That there were additional witnesses offered by the State at the trial of Michael McGee which likewise offered sworn testimony that supported this Defendant's version of facts. (See Vol 1/1: R 34-44 - Renewed Motion to Withdraw Guilty Plea; R. E. p. 13). The fact that Walton answered the generic questions before the Trial Court taking his pleas does not provide any support for the Trial Court's erroneous finding when you again consider Williams own words: the Defendant has primitive learning ability and mental anxieties, often appears in a daze state all of which the defense believes may have impacted his ability to truly rationalize the totality of the criminal matters against the Defendant."

The point is with all the evidence in this matter, most uncontradictable, it is abundantly clear in this case that proper functioning of the adversarial process that the trial [or plea] cannot

be relied on as having produced a just result." *Jordan v. State*, 918 So. 2d 636, 647 (¶19) (Miss. 2005). Appellant respectfully submits that the overwhelming evidence supports that the Court cannot say that the adversarial process can be relied on to have produced a just result in this case and as the dissent pointed out a "miscarriage of justice" has/is occurring that needs to be corrected. Rehearing hearing should be granted in this case and this Honorable Court should forthwith reverse the Court "Order and Opinion of the Court" denying post conviction relief to Walton, grant relief, set aside the Sentencing Judgment and remand this case to the Circuit Court for a trial on the merits.

CONCLUSION

There simply is no issue in this matter that the post-conviction relief should have been granted, Walton's guilty pleas and his sentencing judgment should have been set aside, and this Court should grant rehearing, reverse the Trial Court and remand this matter for a full trial on the merits.

Respectfully submitted, this the 4th day of July, 2017.

KENNY WALTON, APPELLANT
BY AND THROUGH HIS ATTORNEYS OF RECORD
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CERTIFICATE OF SERVICE

I, TIM C. HOLLEMAN, do hereby certify that I have on this date forwarded a true and correct copy of the above and foregoing Motion for Rehearing to the following via United States Mail, postage prepaid: Albert B. Smith, III, Senior Judge, Bolivar County Circuit Court, Post Office Drawer 478, Cleveland, MS 38732-04; Brenda F. Mitchell, Esquire, District Attorney, Bolivar County, Post Office Box 848, Cleveland, MS 38732. And by Electronic Service to: Attorney General Jim Hood, c/o Assistant Attorney General Billy L. Gore, MS Attorney General's Office, Post Office Box 220, Jackson, MS 39205.

This the 4th day of July, 2017.

KENNY WALTON, APPELLANT
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